



UCO/SALABATPURA/ADV/2020-21/

Dated :-28.12.2021

To

Name of the Unit/Borrower:

MECOSON PHARMACEUTICALS PVT. LTD. (Private Limited Company)

Director: (1) MR. ROHIT GIRDHARBHAI DOBARIYA

: (2) MR. YOGESH DHIRUBHAI PANCHAL

Udhya Reg: UDHYAM-GJ-22-004862

GSTN: 24AANCM8592R1ZB

CIN: U24304GJ2020PTC116941

Unit Address:

Office Unit:-306, Shubh Square, Laldarwaja, Surat-395003.

Factory Unit: Plot No.2b 1/2/3, Karma yogi Ind. Estate, Tempo Gali, Pipodara, Surat- 394 110.

Re: Sanction of Credit Facility under CLCS-TUS / ATUFS MSME for Rs. 2,20,00,000/- (Rupees Two Crore Twenty Lakhs Only) for purchase and installation of Pharmaceuticals Machine.

We are pleased to inform you that your application for term loan under UCO Udyog Bandhu scheme, for purchase and installation of Pharmaceuticals Machine along with all accessories for your firm has been favorably considered by us and we have sanctioned the following limit in favour of your firm.

Nature of Facility	Limit (Rs)
Term Loan	Rs. 2,20,00,000/-
Cash Credit	0.00
Total	Rs. 2,20,00,000/-

The above limit has been sanctioned subject to fulfillment of the detailed terms and conditions (standard & special covenants) as contained in Annexure-I, & II enclosed.

Please retain the original of this letter and return to us the other copy duly 'accepted' and 'signed' by the proprietor and guarantors acknowledging and confirming the unconditional acceptance of all terms and conditions stipulated herein.

Thanking You,

Yours faithfully,

FOR MECOSON PHARMACEUTICALS PVT. LTD.

Rowit

DIRECTOR

Chief Manager,

Encl: As stated above.



MECOSON PHARMACEUTICALS PVT. LTD.

Rowit
Director / Authorised Signatory

For MECOSON PHARMACEUTICALS PVT. LTD.

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Director / Authorised Signatory



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TERMS AND CONDITIONS

Annexure-I

(Rs. in Lacs)

1.	Nature of facility	Applied by Applicant	Sanctioned limit
	Term loan	220.00	220.00
	Working Capital	00.00	00.00
	Total Fund Based	220.00	220.00

2. Security:

i) **Primary:** Hypothecation of unit, Stocks, Book Debts & Fixed Assets of the company created out of Bank's finance (Both present and future).

ii) **Collateral:** Collateral details are as under:-

a) Equitable mortgage of residential Plot having plot number: 87 (as per booking plan)/83(as per SUDA plan), admeasuring area 98.00 sq. yards i.e equivalent to 81.94 sq.mtrs. together with undivided proportionate share admeasuring 10.00 sq. mt. in the common road and COP, with all kinds appurtenant thereto, of the housing society known and named as "Hariom Bungalows, Vibhag-2; situated on the land bearing rev. Block No. 179(old survey Nos. 175&211); of Moje Village Mota Varachha; City Surat; Old Taluka: Surat City(Choryasi) and New Taluka Adajan;District Surat . Property is in the name of Mr. Girdharbhai Chhaganbhai Dobariya. Valuation is given by our empanelled valuer Prakash Lokhandwala on dated 26/11/2021 for a realizable value of Rs. 59,98,500.00.

b) Equitable mortgage of Industrial plot having plot number: 2/B, sub-plot 2/B-1,2/B-2/2/B-3,karmyogi Industrial Estate, Tempo Gali-Mazda Gali, Pipodara, Tal Manglore, Surat 394110, Gujarat, India. Admeasuring 6555.00Sq.ft i.e. equivalent to 608.97Sq.m and BUA of 1431.15 Sq.mt. i.e. equivalent to 15405.00 Sq.ft. valued by our banks empanelled valuer Prakash Lokhandwala on dated 25/11/2021. Property is in the name of "MECOSON PHARMACEUTICALS PVT LTD."

Note: The two of the sub-plot viz. 2/B-1 & 2/B-2 is having sale deed is executed below 1. As such consideration value is equivalent to purchase price of the plot and cost of construction as per valuation report.

The acceptable value for the collateral security (b) stands at Rs. 9863601.67.

Total value of collateral security =Rs.9863601.67 + Rs. 5998500.00=Rs.1,58,62,101.67.

Collateral coverage: 72.10%.

The uncovered portion of credit facility to be covered by CGTMSE-HYBRID Guarantee Scheme. CGTMSE-Cover Under Credit Guarantee Scheme for Portion Of Credit Facility Not Covered By Collateral Security i.e Rs. 61,37,898.00, to Be Covered Under CGTMSE as a Hybrid Security.

Personal guarantee of the persons to be taken:-

- 1) Rohit Girdharbhai Dobariya
- 2) Yogesh Dhirubhai Panchal
- 3) Mr. Girdharbhai Chhaganbhai Dobariya

FOR MECOSON PHARMACEUTICALS PVT. LTD.

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DIRECTOR

For MECOSON PHARMACEUTICALS PVT. LTD.

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Authorized Signatory

For MECOSON PHARMACEUTICALS PVT. LTD.

Panchal
Authorized Signatory



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Pricing /Interest :-

Facility	Repo Rate	Credit Risk Premium	Existing Rate		Card Rate		Proposed rate		
			Spread	Effective Rate	Spread	Effective Rate	Spread	Concession	Effective Rate
Term Loan	4.00 %	1.55 %	NA	NA	NA	NA	2.90 %	Na	8.45%

3.	Margin (%)	20.53 %
4.	Purpose	To set allopathic medicine manufacturing unit with total cost of Rs. 276.86 Lakhs
5.	Group/Category	Priority Sector/under MSME
6.	UDYAM Reg. : GST Reg./MSME Reg. No.	UDYAM-GJ-22-0048662 24AANCM8592R1ZB
7.	Subsidy	Applicant may be eligible for capital subsidy from Central Government under CLCS-TUS/ATUFS and interest subsidy from state Government for this project, if all criteria of government for releasing subsidy is fulfilled and bank will never take any responsibility in this regard.
8.	CVA	UDIN: 21070207AAAASX5463 dated 09/12/021 by CA Pawan Siddarth & Co.
9.	Repayment:	
	Term Loan	EMI of Rs. 3, 47,850/-Repayable in 84 Equal Monthly Instalments of each commencing after a moratorium period of 06 months from the date of disbursement of first loan instalment. <u>Interest during the moratorium to be served as and when charged.</u>
	Repayment period	84 months incl. moratorium.
	Moratorium period	Six Month (06 months)
	Mode of Repayment	PDC/ECS/SI Mandate
	Monthly instalment for payment of interest during Moratorium.	Repay monthly whatever Interest to be charged during moratorium period
10.	(i) Validity of Sanction	180 days.
	(ii) Review/ Renewal (in months)	Every year before completion of FOR MECOSON PHARMACEUTICALS PVT. LTD.
	Internal Credit Rating	UCO 3, vetted by Zonal office, surat. Rout
	Validity of Internal Credit Rating	15 months from the date of vetting by the competent authority. DIRECTOR
	MSME Rating Score	75.70 (as provided by the branch)
11.	Inspection	Branch should be conducted Post Disbursement Inspection/Asset verification periodically to ensure that the funds are not diverted/shifted for any other purpose other than the stated purpose. All the bills/ invoices related to the capital expenditure are to be deposited in the Branch. The correctness of these statements should be verified by the credit officer. Branch should ensure that loans extended under this scheme are for approved purposes and the end use is continuously monitored and kept on record.

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12	Insurance	All securities charged to the Bank to be comprehensively insured at the cost of borrower. Cost of insurance shall be borne by the borrower. In case of failure in renewal of Insurance Policy by the borrower, Bank reserves the right to renew the Policy by paying the necessary premium to the debit of borrower's account.		
13	CGTMSE guarantee fee & Annual service fee	Charge as per CGTMSE guidelines to be recovered from the borrower in March every year.		
	Demand Advise No. (DAN)	To be obtain from Zonal Office, Surat.		
14	Processing Charges	As per service charges Circular no. CHO/MSME/04/2018-19 dt-15-05-2018 and modified there on or as per extant guidelines.		
	Documentation/Inspection/ CIBIL/CRIF and other Charges	Particulars	Details of Charges	
		Documentation Charges	As per Bank's extant guidelines	
		Review/Renewal		
		Inspection Charges		
		CIBIL/CRIF Charges		
		Prepayment Charges		
15	Upfront Fee	As per banks extant guidelines		
16	Mortgage Charges	As per banks extant guidelines		
17	Penal Interest	1. In case of delay in payment of EMI by one month or more, penal interest @ 2% per annum will be charged on the amount of default for the overdue period i.e. with effect from the due date. 2. Penal interest in case of breach of (any or as mutually agreed between the Bank and the borrower) of the parameters vis-a-vis values as approved. The penal interest will apply from the day after the date of ABS, and shall continue till the breach is cured.		
18	Disbursement	Loan to be disbursed directly to the Dealer/supplier of Machineries as per quotation/estimate and terms of payment against valid receipt/voucher/BL. Post Disbursement Inspection should be conducted to ensure that the funds are not diverted for any other purpose other than the stated purpose. All the bills/ invoices related to the capital expenditure are to be deposited in the Branch. Branch to ensure that "No part of disbursed amount" will contribute towards margin from borrower. Further disbursement to be made as per prevailing exchange rate, as on the date of disbursement. Any difference will be borne by the borrower.		
19	Other Stipulation, if any:	- All Terms and conditions mentioned as per Revised Guidelines of the Master Circular on UCO UdyogBandhu Scheme as per circular No. CHO/ARBD/40/2015-16 dated 30.10.2015 and modifications thereafter. - Branch has to ensure that the borrower should do business exclusively with us. - Operative accounts with other Bank to be closed. - Bank hypothecation board and serial number of Machine should be embossed on machinery purchased out of bank finance and a photograph in the presence of branch officials should be taken and should be kept in loan file.		

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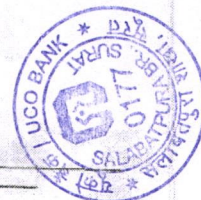
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	- End use of funds has to be verified and disbursement to be made as per bank's extant guidelines. - Inspection of securities is to be done on as per extant guidelines and inspection report should be kept with loan file. As per the guidelines of CERSAI, communicated vide Head Office Circular no, HO/CR-Mon/CERSAI/2016-17/377 Dated 02.05.2016, Ho/CR-Mon/CERSAI/2016-17/377 Dated 21.05.2016 and HO/CR-Mon/CERSAI/2016-17/501 dated 10-06-2016, all secured asset(s) charged by bank is /are to register with CERSAI. Hence, Branch is advised to obtain CERSAI Asset ID& Security interest ID and kept in the file for record.
20	All sanctions must carry specific condition in the Sanction Advice with regard to validity of the sanction namely - the sanction of the facilities is valid for a maximum period of 180 days for working capital advances and 180 days for Term Loan from the date of sanction within which the documentation needs to be completed. Revalidation of sanction should not be made repeatedly. Revalidation should be done only once i.e. for a further period of 90 days only and thereafter the sanction should be treated as lapsed. Any request for further re-validation should not be entertained as a matter of routine and the proposal should be taken up for fresh processing thereafter.
21	The Company will submit audited financial statements within 7 months from the date of to which it relates. Non submission will attract penal rate of interest @2.00 % pa.
22	All document/security creations/charge registration of the facilities will be completed before release of the limit.
23	If the borrower does not start drawing down the funds from Term Loan/WC (fresh) within 180 days from the date of the sanction, then our sanction requires revalidation and the Bank shall have the right to take any action including cancellation of limit, at its sole discretion
24	The Company shall submit to the bank regular returns/select operational data as & when required and also its audited financial statements etc. as soon as the same become ready.
25	All inspection /audit charges, documentation/legal charges etc. in connection with the credit facility to be borne by the borrower.
26	Periodical Inspection at regular intervals as per extant guidelines of our bank to be undertaken.
27	The Company should display a board with its GST No. written on it in a prominent place in the premises indicating that the assets/stocks are hypothecated to our bank.
28	Company should emboss with serial no. and UCO bank's Hypothecation on all assets created by the Bank's fund.

Pre-disbursement conditions:

Annexure- II

Sl. No.	Pre-disbursement conditions to be complied with and permissions to be obtained from Zonal Office, Surat.
1.	The limit will be disbursed on fulfillment of all the terms and conditions of sanction stipulated by the Bank. Borrower & Guarantor shall give unconditional acceptance of terms and conditions as per letter of sanction, which will form the part of documentation and be placed on bank records. Any contravention of terms and conditions will trigger the penal interest and or recall clause at the option of the Bank.
2.	Branch to ensure that creation of Equitable mortgage on collateral security following the Advocate's Report and ensures registration of EMTD to be done as per norms.

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DIRECTOR

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3. The Branch is advised to verify the genuineness of the title deeds and all related documents before creation of mortgage. In this regard Branch ensure that the same is not been mortgaged with any other financial institution and also there is no litigation in the title of the property. Further branch to ensure that admeasuring area of the land, building and boundary of the property is exactly as per title deed and approved plan for both the property offered as mortgage.
4. Branch should complete documentation as per Banks manual of instruction and comply with all terms and conditions before disbursement including creation of mortgage, Comparison chart of Title deed with certified copy, Registration of EMTD and creation of EMTD & filing of security interest on CERSAI portal wherever applicable.
5. PDIR to be conducted by the branch officials for collateral securities.
6. Branch is advised to bring to the notice of sanctioning authority in case any discrepancy is observed in the second verification report (PDIR), as compared with PSVR-IV before the disbursement of the loan.
7. It is stipulated that legal vetting of Documents and documents relating to EMTD of immovable properties to be undertaken by the bank's empanelled advocate before allowing any disbursement of credit facility and branch will ensure and confirmed that there is no adverse remark/discrepancies with regard to loan documentation and documents relating to EMTD of immovable properties.
8. Branch is advised to ensure that name of the proprietor/partners is not appearing in the defaulter list of RBI/ECGC. If similar name(s) appearing in the defaulter list, branch shall take into cognizance only the affidavit signed and executed before Executive / First class Magistrate by the person's concerned.
9. Branch to certify/confirmed that:-
 - CIBIL & CRIF reports have been retrieved on Company/Proprietor/partners and no adverse features observed.
 - Directors/ partners/ proprietor of the firm/Company are not related with the members of the staff/Senior Officials/Directors of the Bank.
10. Due diligence of the borrower/guarantor to be carried out by the Branch.
11. Branch to ensure that Borrower should give an undertaking that the loan shall not be utilized for any purpose other than for which it is granted and loan shall not be utilized for:
 - a. Subscription to or purchase of shares and debenture.
 - b. For extending loans to subsidiary or associates companies or extending inter- corporate deposits.
 - c. Any speculative purpose and other projects.
12. Margin money to be collected upfront for fresh term loan.
13. Branch is advised to collect PDC/ECS/SI for all the EMI from the borrower.
14. Branch to ensure that there is adequate space for proposed machinery at proposed factory.
15. Branch is advised to debit charges like Processing, Documentation, Inspection, CERSAI, CIBIL charges from the borrowers account.
16. Branch to ensure that Borrowers & guarantors should give an undertaking as enclosed in annexure-III.
17. Branch to obtain an Undertaking from the proprietor/partners of the Company that the projection of the capital will be maintain during entire tenure of loan and also Company to submit the source of capital infusion.
18. Branch to obtain CA Certificate for infusion of Proprietors/Partners Capital.
19. Branch should obtained authorization letter to be obtained from borrower/guarantors for accessing information from income tax and other authorities.

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Rajit
Director / Authorised Signatory



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FOR MECOSON PHARMACEUTICALS PVT. LTD.

Rajit

DIRECTOR



20.	Branch to do proper due-diligence of all the suppliers before disbursement.
21.	Branch to obtain GST-Registration certificate of the Company before disbursement.
22.	Branch to obtain declaration with evidence or certificate of all statutory dues and GST clearance, wherever applicable.
23.	Branch will verify about the genuineness of estimates/cost submitted by the borrower to availing this fund for proposed project before disbursement of the loan.
24.	Branch ensures creation of charge with Registrar of the company (ROC), within Stipulated timeframe.
25.	Branch Manager to ensure that the company has updated the current address in Registrar of the company.

Post disbursement conditions:

1	Comprehensive insurance with agreed Bank's clause, for full market value of the goods hypothecated to Bank/Actual stock whichever is higher in view of the 'Average Clause.' The goods hypothecated should be fully covered against all possible risks namely fire and burglary risks, SRCC etc. The original policy is to be kept with the branch and is to be renewed from time to time till currency of Bank's limit.
2	Branch is advised to collect the all original bills of the machineries from the borrower like, Commercial Invoice, Debit Note, Invoice, etc. and also verify all the documents/bills submitted to the bank is genuine.
3	Branch officials are advised to conduct a Post stage Asset Verification after the arrival of Machines /completion of project set up and ensure that the Unit set up is done as per invoice/bill.
4	Branch to obtain completion certificate of the project from chartered engineer.
5	Branch to obtain Plan approval copy from F&D control administration.
6	Branch to obtain copy of manufacturing license for medicine, wholesale drug license and distribution license form state drug control authority.
7	Branch is advised to fill security interest on CERSAI portal of the hypothecated machine.
8	Branch is advised to obtain photographs of all machines which are hypothecated to bank.
9	Branch to ensure that Company has embossed with serial no. and UCO bank's Hypothecation on all assets created by the Bank's fund.
10	Branch is advised to generate LARPT report of the Borrower with sign of the officials.
11	The unit should display a board in a prominent place in the premises/main entrance indicating that the assets/stocks are financed by UCO Bank, Salabatpura Branch (0177) under MSME.
12	Branch should ensure that the account will be monitored in terms of various guidelines issued by the Bank from time to time.
13	Branch is advised to close watch on the Company's projected sales, profit, Capital and other parameter for every year as per submitted project report and obtained audited balance sheet every year.
14	Penal interest will be charged in case of breach of any (or as mutually agreed between the Bank and the borrowers) of the parameters vis-a-vis values as approved. The penal interest will apply from the day after the date of ABS, and shall continue till the breach is cured.
15	Branch obtained installation certificate of machineries from chartered Engineer.
16	Branch should ensure that all check points for Inspection & verification of all securities will be carried out immediately after installation of machineries by the branch and followed the guidelines as per our bank's credit monitoring policy.
17	Branch to ensure strictly compliance of loan & credit monitoring policy and also guidelines of HO circular CHO/ADV/12/2020-21 Dated 05-06-20 & CHO/ADV/15/2020-21 Dated 15-06-2020.

MECOSON PHARMACEUTICALS PVT. LTD.

For MECOSON PHARMACEUTICALS PVT. LTD.

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18	Branch needs special attention on Company's production, sales and profit. Branch will also monitor that all sale proceeds is routed through our bank only.
19	Branch manager / advance in charge should strictly monitor the Company's/company's account regularly as per policy guidelines & related reports should be properly kept in loan file. If branch manager/advance in -charge at any time during the loan tenure finds that the Company is not achieving its projected financials mainly Production, sales & profit, appropriate actions to be exercised as per extant guidelines of the bank.
20	Post Disbursement Inspection should be conducted periodically by the branch officials to ensure that the funds are not diverted for any other purpose other than the stated purpose. All the bills/ invoices related to the capital expenditure are to be deposited in the Branch. Branch should ensure that loans extended under this scheme are for approved purposes and the end use is continuously monitored and kept on record duly signed by BH & advance in charge.
21	Penal interest will be charged in case of Company fails to close the current account with HDFC Bank or with any other bank. The penal interest will apply from the day after stipulated time period, and shall continue till the breach is cured.

Annexure-II (A)

OTHER TERMS AND CONDITIONS

STANDARD COVENANTS (FORMING PART OF TERMS & CONDITIONS)

(In the following terms & conditions, the word "company" wherever used, means "the borrower")

1. For creation of proper and valid equitable mortgage/extension of equitable mortgage of above mentioned immovable properties, branch is advised to follow the procedure as contained in Manual of Instructions, Vol.-VI, Advances General (Part-B), Chapter-12 strictly and also guidelines circulated from HO/this office from time to time.

2. The borrower/company will furnish an undertaking to the bank to the effect that-

- It will not repay the unsecured loan or any part thereof during currency of the Term Loan facility sanctioned by the bank and without prior permission of the bank
- It will not pay any interest on the unsecured loan to the persons/ concerns from whom such unsecured loan will be raised
- After raising unsecured loan, It will furnish a list of the persons/ concerns from whom such unsecured loan has been raised
- In the event of any time/cost overrun, the promoters/directors will meet such cost from own sources either by way of additional share capital or non-interest bearing unsecured loan.

3. The Bank will have the right to examine at all times the Company's books of accounts and to have the Company's factories/printing press inspected from time to time by officer (s) of the Bank and/or qualified auditors or concurrent auditors appointed by the Bank and / or technical experts and /or management consultants or other persons of the Bank's choice. Cost of such inspections will be borne by the Company.

4 During the currency of the Bank's credit facilities, the Firm/company will not, without the Bank's prior permission in writing:

- Effect any change in the Firm/company's capital structure (except issue of Bonus Shares)
- Implement any scheme of expansion/ modernization / diversification / renovation or acquire any fixed assets during any accounting year, except such schemes which have already been approved by the Bank.
- Formulate any scheme of amalgamation or reconstruction

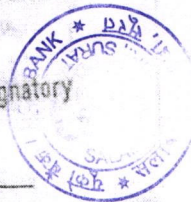
MECOSON PHARMACEUTICALS PVT. LTD.

Director / Authorised Signatory

Rowat 11/25/2011

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- Invest by way of share capital in, or lend or advance funds to, or place deposits with any other concern; normal trade credit or security deposits in the normal course of business or advanced to employees, can, however, be extended
- Enter in borrowing arrangements either secured or unsecured with any other Bank, financial institutions, company or persons
- Undertake guarantee obligations on behalf of any other Firm, Company or person
- Monies brought in by principal shareholders/ directors / depositors will not be allowed to be withdrawn without the Bank's permission
- Create any further charge, lien or encumbrance over the assets and properties of the Firm/Company to be charged to the Bank in favor of any other Bank, financial institutions, company, Company or persons.
- Sell, assign, mortgage or otherwise dispose of any of the fixed assets charged to the Bank.

5. The Firm/Company (borrower) shall promptly submit to the bank all the periodically required statements in the formats already prescribed or to be prescribed from time to time by the Bank or by RBI. In case of non-submission of the statements in time, the bank reserves the right to levy such penalty as it may deem fit, including charging of penal interest.

6. The Company/ company should pay statutory liabilities such as PF, ESI, and its dues to SSI etc. regularly every month. The Firm/Company should undertake to pay all rent, rates, taxes, fees, licenses, etc. and other statutory liabilities regularly in time and authorize the bank to examine the Firm/Company's books of accounts by the officers of the bank and/or by appointing outside agencies, appointed for the purpose, whenever the bank feels necessary to obtain any such certificate and expenses incurred by the bank will be borne by the Company. The Company/ company should render all necessary cooperation to the bank for such inspection

7. The Firm/Company's entire banking business relating to its activity including deposit, bill business, foreign exchange business etc. should be confined to us. The Firm/Company should exclusively deal with our bank. An irrevocable undertaking to this effect should be obtained by the branch from the Firm/Company and should be kept on branch records.

8. The Firm/Company should keep the bank informed of the happening of any event likely to have a substantial effect on its profits or business. If for instance the monthly production or sales are substantially less than what had been indicated to the Bank, the Firm/Company should inform the Bank accordingly with the reasons there for and the remedial steps taken.

9. The bank reserves the right to modify/ revise/add any other terms any conditions as it may deem fit absolutely at its discretion.

10. All other relevant terms and conditions connected with proper monitoring of large borrower account (e.g. proper insurance coverage for the securities charged to bank, registration of charges with appropriate authorities, recovery of processing charges etc.) as described in the bank's Manual of Instructions are to be complied with.

11. Inspection of Fixed Assets, Plant and Machinery financed by our bank should be carried out by the branch Official/Manager as per latest inspection policy and report to this effect on bank's standard format CMR-4 should be kept with branch records.

12. Rate of Interest would be subject to change as may be decided by the Bank from time to time and is subject to revision to be made by the bank from time to time at its sole discretion /as per RBI/IBA guidelines/ rules.

13. Compliance of the terms and conditions of sanction should be submitted to us as per provision of H.O. circular No. CHO/ADV/53/2002 dated 8/10/2002

14. Branch should strictly follow H.O. Circular No. CHO/RM/12/2003-04 Dated 04/12/2003 and Circular No. CHO/RM/20/2004-05 dated 09/10/2004 regarding commitment charges and pre-payment charges.

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for / Authorised Signatory

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For MECOSON PHARMACEUTICALS PVT. LTD.

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Director / Authorised Signatory



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15. Branch to follow H.O. Circular No. CHO/ADV/41/2002-03 dated 26/8/2002 regarding "Disclosure of name of defaulters" and obtain an undertaking in terms of said HO Circular from the company/borrower as well as from the guarantor/s.
16. The sanction letter should be issued in duplicate to the borrower and their unconditional acceptance should be obtained on two copies. A copy of accepted letter should be submitted to this office retaining the other copy for your file.

Mandatory Negative Covenants

- MN1. In the event of default, or where signs of inherent weakness are apparent, the Bank shall have the right to securities the assets charged and in the event, of such securitization, the Bank will suitably inform the borrower(s) and guarantor(s).
The undernoted covenants will be subject to prior notice being given by the borrower and being agreed to by the Bank. If the Bank turn down the borrower's request but the later still goes ahead, the Bank shall have the right to call up the facilities sanctioned
- MN2. Formulate any scheme of amalgamation or reconstruction.
- MN3. Undertake any new project, implement any scheme of expansion/diversification or capital expenditure or acquired fixed assets (except normal replacements indicated in funds flow statement submitted to and approved by the bank) if such investment results into breach of financial covenants or diversion of working capital funds to financing of long term assets.
- MN4. Invest by way of share capital in or lend or advance funds to or place deposits with any other concern (including group companies); normal trade credit or security deposits in the ordinary course of business or advances to employees can, however, be extended. Such investment should not result in breach of financial covenants relating to TOL/Adj. TNW and current ratio agreed upon at the time of sanction.
- MN5. Enter into borrowing arrangement either secured or unsecured with any other bank. Financial institution, company or otherwise or accept deposits which increases indebtedness beyond permitted limits, stipulated if any at the time of sanction.
- MN6. Undertake any guarantee or letter of comfort in the nature of guarantee on behalf of any other company (including group companies).
- MN7. Declare dividends for any year except out of profits relating to that year after making all due and necessary provisions and provided further that such distribution may be permitted only if no event of default / breach in financial covenant is subsisting in any repayment obligations to the Bank.
- MN8. Create any charge, Lien or encumbrance over its undertaking or any part thereof in favour of any financial institution, bank, company, Company or persons.
- MN9. Sell, assign, mortgage or otherwise dispose of any of the fixed assets charged to the Bank. However, fixed assets to the extent of 5% of Gross Block may be sold in any financial year provided such sale does not dilute FACR below minimum stipulated level. (Not applicable for unsecured loans).
- MN10. Enter into any contractual obligation of a long term nature or which, in the reasonable assessment of the Bank, is detrimental to lender's interest, viz. acquisitions beyond the capability of borrower as determined by the present scale of operations or tangible net worth of the borrower / net means of promoters etc., leveraged buyout etc.
- MN11. Change the practice with regard to remuneration of Proprietor by means of ordinary, remuneration or commission, scale of sitting fees etc. except where mandated by any legal or regulatory provisions.
- MN12. Undertake any trading activity other than the sale of products arising out of its own manufacturing operations. (Not applicable in case finance is for trading activity only).

MECOSON PHARMACEUTICALS PVT. LTD.

For MECOSON PHARMACEUTICALS PVT. LTD.

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3/2/2024
Director / Authorised Signatory

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- MN13. Permit any transfer of the controlling interest or make any drastic change in the management set-up including resignation of promoter Proprietor.
- MN14. Repay money brought in by the Promoters / Proprietor / Principal Shareholders and their friends and relatives by way of deposits / loans / advances. Further, the rate of interest, if any, payable on such deposits / loans / advances should be lower than the rate of interest charged by the Bank on its term loan and payment of such interest will be subject to regular repayment of installments to term loans granted / deferred payment guarantees executed by the Bank or other repayment obligations, if any, due from the borrower to the Bank.
- MN15. The borrower shall keep the Bank advised of any circumstance adversely affecting the financial position of subsidiaries / group companies or companies in which it has invested, including any action taken by any creditor against the said companies legally or otherwise.
- MN16. The borrower shall deal with our bank / banks under consortium / multiple banking arrangements exclusively. Shall not open current account/s with any other bank. Without our prior permission. The borrower's entire business relating to their activity including deposit remittances, bills / cheque purchase non-fund based transactions including LCs and BGs, Forex transactions, merchant banking, any interest rate or currency hedging business etc. should be restricted only to the financing banks under consortium / multiple banking arrangement.
- MN17. No commission to be paid by the borrowers to the guarantors for guaranteeing the credit facilities sanctioned by the Bank to the borrowers.
- MN18. Approach capital market for mobilizing additional resources either in the form of debt or equity.
- MN19. Fund Based Limits both in Working Capital and Term Loan, should be regulated through an Escrow Mechanism as agreed among banks to avoid any kind of diversion of funds.

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